

## CHAPTER 7.

An Act to provide, during Twelve Months, for the  
Discipline and Regulation of the Army and Air  
Force. [12th April 1927.]

**W**HEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of one hundred and sixty-six thousand five hundred, including those to be employed at the depôts in the United Kingdom for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions :

And whereas under the Air Force (Constitution) Act, 1917, His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of thirty-three thousand, including those employed as aforesaid, but exclusive of the numbers serving as aforesaid, and the provisions of the Air Force Act are due to expire at the same dates as the provisions of the Army Act : 7 & 8 Geo. 5.  
c. 51.

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow:

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and twenty-seven on the following days:—

- (a) In Great Britain and Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

**1.** This Act may be cited as the Army and Air Force (Annual) Act, 1927.

Army Act  
and Air  
Force Act  
to be in  
force for  
specified  
times.

**2.**—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament (that is to say):—

- (a) Within Great Britain and Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, one thousand nine hundred and twenty-seven, to the thirtieth day of April, one thousand nine hundred and twenty-eight, both inclusive; and

- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, one thousand nine hundred and twenty-seven, to the thirty-first day of July, one thousand nine hundred and twenty-eight, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act or the Air Force Act the prices specified in the Schedule to this Act.

Prices in  
respect of  
billeting.

## AMENDMENTS OF ARMY AND AIR FORCE ACTS.

### PART I.

#### AMENDMENTS OF ARMY ACT APPLICABLE ALSO TO THE AIR FORCE ACT.

4. In paragraph (1) of section twenty-four of the Army Act (which relates to the making away with equipments, &c.), after the words "he has charge" there shall be inserted the words "or any public property issued to him for his use or entrusted to his care for military purposes," and the definition of "equipments" in the same section shall be omitted.

Amendment  
of s. 24 of  
Army Act.

5. In section one hundred and seventy-eight of the Army Act (which relates to mutual relations of regular forces and auxiliary forces), after the words "auxiliary forces" there shall be inserted the words "or any reserve officers, or retired officers," and the words "belonging to such auxiliary or reserve forces" shall be omitted.

Amendment  
of s. 178 of  
Army Act.

Application  
to Air  
Force.

6. References in this Part of this Act to the Army Act shall be deemed to include references to the Air Force Act, and the provisions of this Part of this Act shall in their application to the Air Force Act have effect subject to any of the general modifications set out in Part I. of the Second Schedule to the Air Force (Constitution) Act, 1917, which apply.

## PART II.

### AMENDMENTS OF ARMY ACT.

Amendment  
of s. 57A of  
Army Act.

7. In the definition of the expression "superior military authority" in subsection (9) of section fifty-seven A of the Army Act (which relates to the suspension of sentences), after the word "general" where that word first occurs there shall be inserted the words "or air," and after the words "the officer" there shall be inserted the words "whether military or air force."

Amendment  
of s. 83 of  
the Army  
Act.

8. The following paragraph shall be added at the end of section eighty-three of the Army Act (which relates to the effect of appointment to corps):—

"Where by Royal Warrant any corps is amalgamated with any one or more other corps, or the constitution of a corps is altered, or any unit is transferred from one corps to another, any soldier who at the date of the amalgamation, alteration or transfer was serving in such corps or unit shall be liable to serve in the amalgamated corps or the altered corps or the corps to which his unit is transferred, as the case may be, in like manner as if it were the corps in which he was previously serving, but he shall not be liable without his consent to serve in any unit in that corps in which he could not, without his consent, have been required to serve if no such amalgamation, alteration or transfer had been effected."

Amendment  
of s. 179 of  
Army Act.

9. In paragraph (19) of section one hundred and seventy-nine of the Army Act (which contains a modification of that Act with respect to the Royal Marines), for the words "a public prison for the purposes of this

Act" there shall be substituted the words "a military  
" prison for the purposes of this Act relating to im-  
" prisonment."

**10.** Paragraph (14) of section one hundred and ninety of the Army Act (which provides for the interpretation of the expression volunteers and volunteer forces) shall be omitted. Amendment of s. 190 of Army Act.

### PART III.

#### AMENDMENTS OF AIR FORCE ACT.

**11.** In section thirty-nine A of the Air Force Act (which relates to special offences in relation to aircraft, &c.) the following amendments shall be made:— Amendment of s. 39A of Air Force Act.

- (1) In paragraph (b) for the word "neglect" there shall be substituted the words "act or neglect";
- (2) In paragraph (c) for the words "By neglect" there shall be substituted the words "Is guilty of any act or neglect" and after the word "otherwise" there shall be inserted the word "which";
- (3) For paragraph (e) the following paragraph shall be substituted:—

“(e) Is guilty of any act or neglect in flying, or in the use of any aircraft, or in relation to any aircraft or aircraft material, which causes or is likely to cause loss of life or bodily injury to any person.”

**12.** In the definition of the expression "superior air-force authority" in subsection (9) of section fifty-seven A of the Air Force Act (which relates to the suspension of sentences), after the words "the officer" there shall be inserted the words "whether air force or military." Amendment of s. 57A of Air Force Act.

**13.** In subsection (2) of section one hundred and seventy-nine A of the Air Force Act (which contains the modifications of the Act with respect to sailors and soldiers attached to the air force) after the words "for service with the regular air force" there shall be Amendment of s. 179A of Air Force Act.

inserted the words "or the air force reserve," and after the words "the following modifications" there shall be inserted the words "and shall so apply in the case of " any such commissioned officer notwithstanding that " he may also hold a commission in the air force."

## Section 3.

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## SCHEDULE.

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| Accommodation to be provided.                                                                                                                                   | Maximum Price.                                                                                 |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|
| Lodging and attendance for soldier where meals furnished.                                                                                                       | Tenpence per night for the first soldier and eightpence per night for each additional soldier. |
| Breakfast as specified in Part I. of the Second Schedule to the Army Act.                                                                                       | Sevenpence each.                                                                               |
| Dinner as so specified - - -                                                                                                                                    | Tenpence.                                                                                      |
| Supper as so specified - - -                                                                                                                                    | Fourpence.                                                                                     |
| Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat. | Tenpence per night for the first soldier and eightpence per night for each additional soldier. |
| Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw per day for each horse.                                                     | Two shillings and twopence per day.                                                            |
| Stable room without forage - - -                                                                                                                                | Sixpence per day.                                                                              |
| Lodging and attendance for officer - - -                                                                                                                        | Three shillings per night.                                                                     |

*Note.*—An officer shall pay for his food.

In the application of this Schedule to the Air Force references to the Air Force Act and airman shall be substituted for references to the Army Act and soldier.

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